



rev.4/17/2024

United States District Court
Western District of New York

Marc M. Moszkowski

Motion for Electronic
Filing Privileges

vs.

Case No. : 26-cv-6015

David L. Rumsey, Rustin R. Howard, DeepGulf, Inc.

Defendant(s)

I, Marc Moszkowski, am the pro se Plaintiff/~~Defendant~~ in the above-referenced matter and hereby request the Court's permission to file and receive documents electronically for this case.

I believe that the following circumstances demonstrate why the Court should grant my request for the Court's permission to file and receive documents electronically for this case:

I am located overseas, more than 4,000 miles from Rochester, and am physically unable to travel to or access any United States post office or Clerk's Office. I have maintained electronic filing access for nearly eight years in multiple United States courts, including the United States District Court for the Northern District of Florida, the United States Court of Appeals for the Eleventh Circuit, the Florida Circuit Courts, and the Florida First District Court of Appeal, with hundreds of accepted filings and no history of misuse.

I hereby affirm each of the following statements in support of my request:

1. I have successfully completed the Court's initial CM/ECF e-filing training and I have reviewed the Court's Administrative Procedures Guide for Electronic Filing. x x
2. I have also reviewed the individual filing preferences of the presiding judge (District or Magistrate) and referral judge in this matter. x x
3. I have registered for a PACER Account and understand that it is my sole responsibility to ensure that my PACER Account information is current, especially my email contact information, and that failing to do so may result in adverse consequences for my case (e.g., missed notifications and deadlines) and may ultimately result in revocation of my permission to file electronically. I further understand that the Court is not responsible for notifying me if it receives a "bounce back" (i.e., an undeliverable e-mail) notice from my e-mail account. x x
4. I understand the technological requirements necessary to file and receive documents electronically. x x
5. I have registered for electronic service. x x

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6. I understand I may still file a document manually with the Clerk's Office, if necessary, after I have been granted permission to file electronically. x x
7. I understand that my permission to electronically file documents may be revoked or restricted by the Court at any time, should the Court have reasonable cause to believe that I have misused the system. x x
8. I have never been sanctioned by this Court for misuse of case filings (manual or electronic). x x
9. I understand that I may withdraw from participation in the Electronic Filing System by submitting a written request to the presiding judge. x x
10. I understand that permission to file electronically is case-specific, meaning that I must apply for permission to file electronically in every case in which I want to file documents electronically. x x
11. I have litigated the following cases in the Western District of New York:
- _____
- _____
- _____x

Date: January 14, 2026

Signature: M. Moszkowski

Name: Marc Moszkowski

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